ARRANGEMENT OF SECTIONS

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IT is hereby notified that the Minister responsible for Local Government has, in terms of section 229 of the Urban Councils Act [*Chapter 29:15*], approved the following by-laws:—

Title

1. These by-laws shall be cited as the Plumtree Town (Noise) By-laws, 2025.

Application

2. These by-Laws shall apply within the Plumtree Town area.

Interpretation

3. In these by-laws—

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"authorised person" means any person employed or delegated by the council to carry out any of the functions prescribed in these by laws;

"community event" includes any wedding, party, church service, awareness campaign or any such gathering where people are likely to congregate in huge numbers;

"council" means the Plumtree Town;

"promotional event" means any event done at a public place, public street or in the neighbourhood to promote a business or event to a target audience;

"public place" means any street alley, park, public building, shopping centre, any place of business or assembly, open to, or frequented by the public and any other place which is open to the public view, or to which the public has access;

"public street" includes any road, street, thoroughfare, greenway, land, footpath, open space or bridge to which the public has access;

"scheme" means a scheme as defined in the Regional, Town and Country Planning Act [*Chapter 29:12*];

"urban centres" means any area designated by Council as such.

Suppression of noise

4. (1) No person in the Council area shall emit noise in excess of the emission standards prescribed in terms of section 79 of the Environmental Management Act [*Chapter 20:27*].

(2) Subject to the provisions of section 6 no person shall—

(a) operate or cause or permit to be operated any wireless, loudspeaker, gramophone, record-player, amplifier, musical instrument or similar device so as to disturb or interfere with the rest, peace or tranquility of any occupier of premises in the neighborhood or in any public street, or in any public place; or

(b) operate, or cause, or permit to be operated for the purpose of advertising, any wireless, loudspeaker, gramophone,

record-player, amplifier, musical instrument or similar device in the neighborhood in or adjacent to any public street or public place, without the prior written consent of the council; or

(c) make any noise or disturbances, by shouting, yelling or blowing upon any wind instrument, beating upon any drum or other instrument, article or device, or by any other means, which the noise or disturbances disturbs or interferes with the rest, peace or tranquility of any occupier of premises in the neighborhood or in any public place or public street; or

(d) operate or cause to or permit to be operated any model aeroplane, steam or diesel powered model locomotive, model car, or other similar machine; or contrivance of the noise or disturbances is such as to disturb or interfere with the rest, peace or tranquility of any occupier of premises in the neighborhood or in any public place or public street; or

(e) ring bell, sound a horn, blow whistle or a musical or other instrument or shout in any public street or public place or in the neighborhood for the purpose of hawking, selling or distributing any article or thing whatsoever, or for advertising any entertainment, to the annoyance, disturbance or inconvenience of any occupier of premises in the neighborhood or in any public place or in any public street; or

(f) operate, or cause or permit to be operated, on any land zoned for residential purposes in any scheme, any power driven grass-cutting or hedge-cutting machine before the hour of 0800 hours and up to 1600 hours on any day; or

(g) keep, or cause or permit to be kept, any bird or animal which, by reason of continued or repeated crowing, screeching, barking or whining, or other noisy or troublesome habits, causes annoyance, disturbance or inconvenience to any occupier of premises in the neighborhood or public place.

Regulation of noisy businesses, trades and machinery

5. (1) Subject to the provisions of subsections (2) and (3), no person shall, other than on land zoned for industrial purposes in any scheme, on a Sunday or public holiday, or before the hour of 0700 hours or after the hour of 0600 hours on any other day—

(a) carry on or cause or permit to be carried on, any business, trade or industry; or

(b) use or cause or permit to be used, in the course of building, demolition or excavation operations, any machine, machinery, engine, apparatus, tool or contrivance, whether powered or not;

which disturbs, or which is likely to disturb, the rest, peace and tranquility of any occupier of premises in the neighborhood or in any public place or public street.

(2) The prohibition contained in subsection (1) shall not apply in circumstances in which the carrying on of such business, trade of industry, or the use of such machine, machinery, engine, apparatus, tool or contrivance, is urgently necessary—

(a) to preserve the life, safety or health of any person; or

(b) to preserve property; or

(c) to maintain essential services.

(3) The council may, for good cause, on the written request of any person, grant whole or partial exemption upon payment of the fees prescribed in the First Schedule, from the prohibition contained in subsection (1), and may—

(a) attach to any such exemption such conditions as it considers desirable; and

(b) withdraw such exemption at any time by notice, in writing.

Temporary noise permit

6. (1) Any person may submit an application together with the prescribed fee, for a temporary noise permit for a community event or promotional event.

(2) The application made in terms of subsection (1) shall be made in writing to the authorised person and shall contain the following—

(a) name and address of the applicant;

(b) description of the event;

(c) location of the event;

(d) description of the source of sound and level of sound for which the temporary noise permit is sought; and

(e) times of day and the period of time (not in excess of six (6) months) for which temporary noise permit shall be granted.

(3) An application made in terms of subsection (1) shall be accompanied by such application fee specified in the First Schedule.

(4) Upon the application being granted, the applicant shall pay such temporary noise fee as specified in the First Schedule.

Powers of authorised person

7. (1) In making his or her determination in terms of section 6, the authorised person shall—

(a) determine whether the event falls within the definition of community or promotional event; or

(b) consider any negative effects the issuance of the Temporary Noise Permit may have on neighbouring properties of the council area; or

(c) consider any benefits the issuance of the Temporary Noise Permit may have for the neighbouring properties or the council area.

(2) Where the authorised person has made a decision in terms of subsection (1), he or she shall give written notice of the decision to the applicant.

(3) The notice given in terms of subsection (2) shall—

(a) set out the grounds of the decision; and

(b) give reasonable particulars of the grounds.

(4) Any person aggrieved by the decision of the authorized person may appeal to council within twenty-one (21) days from the date such decision complained of was given.

Obstruction

8. No person shall hinder or obstruct an authorised person from carrying out any of the functions prescribed in these by-laws.

Impoundment of equipment, gadgets and machinery

9. (1) An authorised person may impound any equipment, gadget or machinery used in contravention of any provision of these by laws.

(2) The equipment, gadgets or machinery so impounded shall be taken to a secure compound designated for such purpose by the council.

(3) The equipment so impounded shall only be released upon the owner paying the prescribed penalty and such removal and storage charges as prescribed by the council.

Disposal of unclaimed equipment, gadgets and machinery

10. (1) Any equipment, gadget or machinery impounded in terms of section 9 which remain unclaimed for a period of three (3) months from date of impoundment, council shall publish a notice publish in a newspaper of wide circulation within the council area a list of impounded equipment which remain unclaimed for a period of thirty (30) days from the date of impounding, gadgets or machinery and advise the owners to claim the same within thirty (30) days.

(2) Council shall sell by public auction any equipment, gadgets or machinery that remain unclaimed thirty (30) days after the notice has been published.

(3) Council shall deduct its charges from the proceeds of the sale of unclaimed equipment, gadget or machinery and the balance (if any) shall be paid to the owner within thirty (30) days.

(4) Council shall operate a special account into which money realised from the sale of unclaimed equipment, gadgets or machinery shall be deposited.

(5) Any money not claimed within thirty (30) days after such sale shall be forfeited to council.

Cancellation of permit

11. (1) The authorised person shall cancel a permit if the holder is penalised for any contravention of the provisions of these by laws.

(2) Where the permit is cancelled, the holder shall return the permit to the authorised person within 48 (forty-eight) hours of being given notice of such cancellation.

(3) Any permit cancelled shall not be renewed until a period of 1 (one) year has lapsed from the date of cancellation.

Offences and penalties

12. Any person who contravenes any provisions of these by-laws shall be liable to a fine specified in the Second Schedule.

FIRST SCHEDULE: *Fees*

Section	Description	Fee $
5	Application for exemption Central Business District Permit fees—Business Other Areas Permit fees-Business	0,00 0,00 per annum 0,00 per annum
6	Application for temporary noise permit Residential Permit fees Central Business District Permit—Business Other Areas Permit-Business	0,00 0,00 0,00 0,00
9	Impoundment and storage fees	0,00

SECOND SCHEDULE: *Penalties*

Section	Description of Offence	Charge
4	Noise in Central Business District—Business Noise at Other Centres—Business	US$10,00 per day US$10,00 per day
8	Hindering or obstructing an authorised person from carrying out any of the functions prescribed in these by-laws	0,00

NB: The above penalties can be paid at the prevailing interbank rate and shall exclude VAT.